

Court No. - 21

Case :- WRIT - C No. - 707 of 2019

Petitioner :- Fauzia

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Vikrant Pandey, Sanjeev Kumar Pandey

Counsel for Respondent :- C.S.C., Awadhesh Kumar Saxena

Hon'ble Pradeep Kumar Singh Baghel, J.

Hon'ble Pankaj Bhatia, J.

The petitioner is aggrieved by the inaction on the part of the second respondent in sanctioning the new electric connection to her as there is dispute between the petitioner and the landlord, who has disconnected the power supply of the petitioner.

Learned counsel for the petitioner submits that if the landlord refused to give the consent for new power connection, the Electricity Supply Code, 2005 (hereinafter referred to as the Code, 2005) provides that under the clause 2.2 (OO) of the Code, an occupier can also apply after furnishing indemnity bond. Clause 4.4 of the Code is the format for getting new electricity connection. In reference to clause 4.4 of the Code is a format of indemnity bond which is to be given in case the consumer is not the owner of the premisses.

Admittedly in the present case, the petitioner is an occupier hence, if she completes the formalities for the new power connection as an occupier, we direct the respondents to provide her fresh electricity connection in accordance with law.

Our attention has been drawn to the Judgment of Division Bench of this Court on the same issue in Writ-C No.28295 of 2014 (Seema Mansoor Vs. U.P. Power Corporation Ltd.

& 3 others). The relevant part of the order reads as under :-

"Section 43 of the Act enjoins a duty upon the licensee not only to supply electrical energy on an application in this behalf not only by a owner of a premises but also a occupier which has been defined under the Code 2005 to include any authorized person in occupation of the premises. A tenant would be an authorized person in occupation of a premises. A perusal of Clause 4.4 of the Code 2005 goes to show that indemnity form as per annexure 4.2 can also be filed along with an application for new connection. The purpose is to enable such tenants, in respect of whom the owner or landlord refuses to give no objection for a new connection.

A perusal of Annexure 4.2 reproduce herein-above goes to show that the purpose as is obvious from the reading of the aforesaid form is to indemnify the licensee for any loss that may accrue on account of any act of a person in occupation of the building though he may not be owner. Thus, the Code 2005 provides either for consent letter of owner of the premises or in the absence thereof indemnity bond by the lessee/tenant or occupier of the premises. Intention is, thus, clear that either there should be owner's consent to indemnify the licensees in case the tenant/lessee or occupier vacates and vanishes without leaving his address or in the alternative tenant/lessee or occupier may give an undertaking indemnifying any loss or damage to licensee on account of electricity connection being given to him without the consent of the owner of the land or premises making it recoverable from him and his property under the provisions of the Revenue Act in force at the time of such recovery, or by such other proceedings as the Licensee may deem fit to initiate. From the reading of the aforesaid provisions, it is clear that licensee is under an obligation to supply electrical energy on a proper application being made and every owner or occupier, which will include a tenant, of the premises has statutory right to apply and obtain electricity supply from the licensee subject to his fulfilling requirements under the provisions of the Electricity Act, 2003 and the Electricity Supply Code 2005. Thus, an application for grant of electricity connection cannot be refused by licensee on the ground that there is no consent of the landlord. From the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord. "

The aforesaid judgment of the coordinate Bench of this Court is squarely covered in the facts of the present case.

We have heard learned counsel for the petitioner and Sri A.K. Saxena, learned counsel on behalf of the second respondent.

In view of the controversy involved, we do not find that any parties would be served by issuing notice to the respondent no.3, who is landlord.

With the aforesaid observation, the writ petition stands disposed of.

Order Date :- 10.1.2019

Hasnain